

Mohd. Haleem Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 November 2016 · WRIT - C No. 55160 of 2016 · **Writ disposed; competent authority to decide pending 6.5 bill-correction application within four weeks.**

HEADNOTE

Where a consumer's application for correction of an electricity bill under clause 6.5 of the U.P. Electricity Supply Code, 2005 is already pending, the High Court disposes of the writ by directing the competent authority to decide that application by a speaking and reasoned order within four weeks, without examining the bill on merits.

FACTUAL SUMMARY

Mohd. Haleem Khan filed Writ-C No. 55160 of 2016 in the Allahabad High Court against the State of Uttar Pradesh and two others. Before the writ he had applied to the concerned electricity authority for correction of his electricity bill under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. That application was still pending when the Division Bench heard the petition on 22 November 2016. The Court did not go into the bill itself.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending bill-correction application

HOLDING

The petitioner's application for correction of the electricity bill under clause 6.5 of the Electricity Supply Code, 2005 being pending before the concerned authority, the writ petition is disposed of by directing the competent authority to decide that application by a speaking and reasoned order within four weeks, without examining the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PENDING CLAUSE 6.5 BILL-CORRECTION APPLICATION

Left to the competent authority to decide by a speaking and reasoned order within four weeks. ¶ 1